ARRANGEMENT OF SECTIONS

*Section*

1. Title and operation.
2. Application.
3. Interpretation.
4. Grading and wages.
5. Hours of work: employees other than shift workers.
6. Hours of work: shift workers.
7. Short-time working.
8. Conversion of rates.
9. Payment for overtime.
10. Stand by allowance.
11. Deductions.
12. Payment of wages.
13. Cooked meals.
14. Piece work, task work, and work on a ticket system.
15. Incentive production schemes.
16. Special provisions: learners.
17. Subsistence allowances.
18. Vacation leave.
19. Special leave.
20. Industrial holidays.
21. Sick Leave.
22. Administration of sick leave.
23. Maternity leave.



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*Section*

24. Contract and notice.
25. Continuous service.
26. Record of service.
27. Health and safety (refer to health and safety policy).
28. Gratuities on termination of employment.
29. Copy of agreement and notice.

First Schedule: Grading.

Second Schedule II: Gratuities

Third Schedule III: Service allowance.

IT is hereby notified that the Minister of Public Service, Labour and Social Welfare has, in terms of section 80(1) of the Labour Act [*Chapter 28:01*], approved the publication of the Wage Increase Agreement set out in the Schedule and registered in terms of section 79 of the Act [*Chapter 28:01*]:—

Schedule

NATIONAL EMPLOYMENT COUNCIL FOR THE CEMENT AND LIME AND ALLIED INDUSTRY

COLLECTIVE BARGAINING AGREEMENT FOR THE CEMENT AND LIME AND ALLIED INDUSTRY

MADE AND ENTERED in accordance with the Labour Act [*Chapter 28:01*], between the Cement and Lime and Allied Employers Association of Zimbabwe (hereinafter referred to as "the employer" or the employers' organisation") and the Cement and Lime and Allied Workers' Union of Zimbabwe (hereinafter referred to as "the employees" or "the trade union") being parties to the National Employment Council for the Cement and Lime and Allied Industry of Zimbabwe.

This agreement replaces Statutory Instrument 7 of 2019, published on 11th January, 2019. The employer party and the employee party agreed on the following—



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*Title and operation*

1. (1) This agreement may be cited as the Cement and Lime and Allied Industry Collective Bargaining Agreement.

(2) This agreement shall operate from the date on which the parties agreed to it.

*Application*

2. This agreement shall apply to—

(a) all employers in the Cement and Lime and Allied Industry; and

(b) all employees in that industry who fall within the NEC grades;

in the area of Zimbabwe.

*Interpretation*

3. In this agreement—

"afternoon shift" means any shift which in which the majority fall between 12 midday and 8p.m.

"casual work": means work for which an employee is engaged by an employer for not more than a total of six weeks in any four consecutive months;

"Cement and lime and allied industry" means, without in any way limiting the ordinary meaning of the expression, the industry in which employers and employees are associated together for the purposes of—

(a) extraction of raw materials, quarrying limestone and manufacture and packing of cement and lime and allied products;

(b) distributing, wholesale, any of the products described in paragraph (a) when carried out in addition to such extraction or manufacturing and includes all processes incidental thereto;

"continuous service" means the total period of an employee's unbroken service with an employer in terms of section 25 of the CBA;



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"Council" means the National Employment Council for the Cement and Lime and Allied Industry of Zimbabwe;

"day off" for six day shift workers means Sunday or that day in the week in place of Sunday on which an employee is not normally required to work;

"morning-shift" means any shift which in the majority of hours fall between 5a.m. and 12 midday;

"afternoon shift" means work in which the majority of hours fall between 7 a.m. and 5 p.m.

"due date" means the normal pay date which is accepted practice in the industry;

"emergency work" means work which must be performed immediately in order to prevent harm to the plant or the employees, or to near-by persons or properties and to prevent interruption to production or dispatch;

"fixed term contract" means a contract where an employee is engaged for a fixed duration of not more than 2,5years or for the performance of a specific task;

"grade" means a grade listed in the First Schedule;

"industrial holiday" means any day prescribed as a paid holiday in terms of section 20;

"medical practitioner" means any person who is legally permitted to practise as a medical practitioner in Zimbabwe*;

"night-shift" means a shift the majority of hours of which fall between 8.00 p.m. and 5.00 a.m.;

"overtime" means any time worked outside ordinary daily working hours;

"permanent contract" A contract of employment without limit of time;

"piece work" means any system by which earnings are calculated wholly on the quantity or output of work done, irrespective of the time spent in such work;



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"recognised licence" means a blasting licence issued in terms of the Explosives (Licensing and Use) Regulations, 1970, published in Government Notice 535 of 1970;

"shift worker" means an employee who on starting or dismissing from work, replaces another employee or is replaced by another employee;

"stand-by" means the period during which in addition to his or her ordinary hours of work, an employee is obliged to be available when called out;

"union" means the Cement and Lime and Allied Workers Union of Zimbabwe;

"employers organisation" means any association or organization formed to represent or advance the interests of any employers or groups thereof in respect of matters relating to employment;

"wage and/or salary" means the earning of an employee, but does not include any payment in respect of overtime or any bonus or other like benefit;

"working day" means any day other than a day off or an industrial holiday.

*Grading and wages*

4. (1) Every employer shall place each employee in a grade appropriate to his/her occupation, and shall pay a wage to such employee of at least the amount prescribed as the current minimum for the occupation of the employee, and no employee shall accept a wage amounting to less than that amount.

(2) An employee who, at the date of commencement of this agreement, is in receipt of higher wage for his particular occupation than the wage prescribed as the current minimum shall not, by reason of this agreement, suffer any reduction in his/her wage.

(3) On promotion to a higher grade, an employee shall be paid not less than—

(a) the wage which he/she last received prior to his/her promotion; or



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(b) the minimum wage, prescribed for such grade;

whichever is the greater.

(4) An employee who is required to perform work in a lower grade than that in which he/she is normally employed shall be paid the wage applicable to the grade of work that he/she normally performs.

(5) An employee who is required to perform work in a higher grade than that in which he/she is normally employed shall be appointed in writing and be paid an acting allowance at the rate applicable to such higher grade starting at a minimum of four (4) hours spent working in that higher grade within a single shift.Where an employee is being trained for the higher level job, they shall be appointed in writing to act in that position without any acting allowance accruing. This must be supported by a training programme with a clear limit of time.

(6) Where an operation performed by an employee is not specified in the First Schedule—

(a) the employer shall provisionally place the employee in a related grade; and

(b) the employer shall notify the Chairperson to the Council and shall within three months forward the job description to council for evaluation; and

(c) the results of the evaluation shall be forwarded back to the employer for implementation within one month from the referral date:

Provided that, if the interim classification by the employer or the final classification by the Council places the employee in a grade—

(i) higher than the employee's current grade, he/she shall be paid not less than the minimum wage prescribed for such higher grade, with effect from the date upon which he/she commenced performing the operation concerned; or

(ii) lower than the employee's current grade, the current incumbent shall on a Person to Holder (PTH) basis be paid the wage he/she was receiving prior to the evaluation.



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(7) No employer shall reduce the wage of an employee for any time not worked if the employee was able and willing to work and was present at his/her place of work but the employer was unable or unwilling to furnish him/her with work.

(8)Where an employer has placed a job in a grade higher than the Council, it shall not be lawful to lower that grade.

*Hours of work: Employees other than shift–workers*

5. (1) The ordinary hours of work for employees, shall not exceed forty-five hours per week:

Provided that the ordinary hours of work shall not exceed—

(a) nine hours per day for employees who work a five day week;

(b) eight hours fifteen minutes per day on five days and three hours forty-five minutes on the sixth day for employees who work a six day week.

(2) An employer may request, but shall not require, an employee to work overtime, and shall, whenever possible give twenty-four hours notice to such an employee of such a request:

Provided that employees needed to render emergency work may not decline requests to work overtime without reasonable excuse.

(3)Except in the case of emergency work, no employer shall permit an employee to work more than sixty hours, ordinary time and overtime included, in any one week.

(4)Every employee shall receive not less than twenty four continuous hours of rest each week either on the same day of every week or on a day agreed by the employer and the employee.

(5) An employee may not be required to work on her/his day off, except in cases of emergency work.

(6) No employer shall permit an employee, other than a security guard, to work for a continuous period of more than five hours without a break of at least thirty minutes:



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Provided that such continuous period shall be deemed not to be broken by a break of less than thirty minutes.

*Hours of work: Shift-workers*

6. (1) The provisions of section 5(3) to (6) apply to shift- workers.

(2) Except where better conditions exist, the ordinary hours of work for shift – workers shall not exceed one hundred and ninety-five hours per month provided that—

(a) three hours overtime shall be allowed to complete the continuity of the shift system;

(b) for a five day week, the ordinary hours of work shall not exceed nine in any period of twenty-four hours;

(c) for a six-day week, the ordinary hours of work shall not exceed eight on five days and five on the sixth day in any period of twenty-four hours, except for the purpose of changing shifts.

(3) No employer shall permit a shift-worker to work a continuous period of more than five hours without a break of at least fifteen minutes:

Provided that such continuous period shall be deemed not to be broken by a break of less than fifteen minutes.

(4) An employee who works the majority of hours which fall between 8.00 p.m. and 5.00 a.m. shall be paid a night shift allowance of ten *per centum* of his/her hourly wage for the hours worked by him or her.

(5) No employee shall be required to work two shifts in one day, except for the purpose of changing shifts or in the case of emergency work, and no employee shall commence work on the new shift until at least eight hours have elapsed after the completion of his previous shift.

(6) Nothing contained in this section shall confer any right to payment for overtime on any shift-worker who is required to work two shifts in one day for the purpose of changing shifts.



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(7) No shift-worker shall be kept on night shift for a continuous period of more than two weeks without his/her consent.

(8) A shift-worker who is changed from night-shift to morning-shift or afternoon shift shall be placed on day-shift or afternoon shift for a period at least equal to the period during which he/she was on night shift, unless, he/she otherwise agrees.

(9) A shift-worker who works a three-shift system shall be paid a shift allowance of ten per centum of his hourly wage for the period that he/she has been on shift.

(10) Subject to subsection (4), a shift worker rotating on a two shift system of morning and afternoon shifts only shall be paid an allowance of five *per centum* of his/her hourly wage for the hours worked by him or her.

(11) Every shift worker shall be entitled to not less than twenty-four continuous hours of rest each week either on the same day or on a day agreed by the employer and employee.

*Special measures to avoid retrenchment*

7. (1) Every employer shall ensure that, at the earliest possible opportunity, his or her employees are kept informed of and consulted in regard to any major changes in production, programmes, organisation or technology that are likely to entail the retrenchment of any employees in a six-month period.

(2) Subject to this section, before giving notice of the intention to retrench any employees in terms of section twelve(c) of the Labour Act [*Chapter 28:01*], an employer may agree with the employees concerned, or with any workers committee, works council or employment council which represents the employees, to have the following recourse as a measure to avoid retrenchment for a period not exceeding twelve month: subject to subsection (5), placing the employees on short-time work.

(3) An agreement entered into in terms of subsection (2) shall have effect notwithstanding anything to the contrary contained in any employment regulations, collective bargaining agreement or other contract or agreement applicable to the employees concerned.



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(4) While an employee is on short-time work referred to in subsection (2), he/she shall be paid the hourly equivalent of his/her weekly or monthly wage for the hours he/she has actually worked:

Provided that an employee shall receive not less than fifty *per centum* of his/her current weekly or monthly wage, as the case may be.

(5) Any time during which an employee is not engaged in full-time work as a result of a measure resorted to in terms of this section shall be regarded as unpaid compulsory leave and shall not be deemed to interrupt continuity of employment.

*Conversion of rates*

8. (1) For the purpose of converting an hourly wage to—

(a) the daily equivalent, the hourly wage shall be multiplied by the number of hours ordinarily worked in a day;

(b) the weekly equivalent, the hourly wage shall be multiplied by the number of hours ordinarily worked in a week;

(c) the fortnight equivalent, the weekly wage shall be multiplied by two;

(d) the monthly equivalent, the weekly equivalent shall be multiplied by four and one third.

(2) In any calculation under this section, any fraction of a cent can be taken into account.

*Payment of overtime*

9. (1) The employer shall pay for overtime in excess of thirty (30) minutes per day at one and a half times the employee's current wage.

(2) Notwithstanding the provisions of subsection (1), the employer shall pay for overtime on a day off at double the employee's current hourly wage.

(3) Notwithstanding the provisions of subsection (1), and in addition to the payment prescribed in subsection (2) of section



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20, the employer shall pay at double the current hourly wage of the employee for all hours worked on an Industrial Holiday.

*Standby allowance*

10. Whenever an employee is called upon to under-take standby duties, the employer shall pay a standby allowance of 20% of the daily rate for the period that the employee is on standby.

Provided that where better conditions prevail, it shall not be lawful to lower such conditions.

*Deductions*

11. No deduction or set-off of any description shall be made or allowed from any remuneration, other than a bonus, due to an employee, except—

(a) where an employee is absent without leave from work on days other than paid holidays or vacation leave, a *pro rata* amount of wages only for the period of such absence; or

(b) by a written stop-order for contributions to insurance policies, pension funds or medical aid societies; or

(c) any amount which the employer is compelled by law or legal process to pay on behalf of an employee including Union dues; or

(d) deductions made in terms of subsection (2) of section 13; or

(e) with written consent of the employee, previously obtained, for rent, water, electricity charges, relating to accommodation provided by the employer; or

(f) with prior written consent of the employee: or

(g) in respect of money owing for goods or amenities supplied or services rendered by the employer; or

(h) in respect of repayment of money, including interest, if any, thereon, lent by the employer; *or*

(i) Amounts recovered for payments made in error or overpayment of wages:



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Provided that the goods have not been purchased or the amenities or service rendered at the direction or dictation of the employer and that the total deductions in terms of this section shall not exceed 25% of the gross remuneration due to the employee concerned; or

(j) in the event of the termination of a contract of employment, the employer may make a deduction from the terminal benefits due to the employee, of the balance of any money owing to the employer in terms of paragraphs a, b, c, d, e, f, g and h of subsection (i).

*Payment of wages*

12. (1) Every employer shall pay wages to each employee, weekly or monthly, as the case may be, on or by due date:

Provided that payments for overtime, bonuses and allowances shall be made to each employee, weekly or monthly, as the case may be, on *or before the next due date*.

(2) Where the services of such employees are terminated, payment shall be made within *thirty* working days of the termination of service.

(3) All remuneration shall be paid in cash or by cheque, or by direct deposit into a bank or building society and shall be accompanied by a wage-slip showing —

(a) the name and grade of the employee; and

(b) the wage rate; and

(c) the total number of hours worked; and

(d) the amount of overtime; and

(e) bonus and allowances; and

(f) deductions for absence without leave or other deductions permitted in terms of section 11; and

(g) the net amount received by the employee;

(h) the accumulative pension contribution;

(i) the period for which payment is made.



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*Cooked meals*

13. (1) Where an employer supplies meals he/she must display the cost of such meals in a prominent position in the canteen.

(2)An employee who voluntarily accepts such meals may have the cost of such meals deducted from his/her wages.

(3) The employer shall provide all employees *with* free tea or any other substitute, or adequate facilities for preparing a beverage during the prescribed fifteen-minute break.

Provided that where the working environment is not conducive to having meals, a suitable environment shall be provided.

*Piece-work, task-work and work on a ticket system*

14. No employer shall give out, and no employee shall perform, work on—

(a) piece-work basis; or

(b) task work basis;

(c) a ticket system.

*Incentive production schemes*

15. Notwithstanding the provisions of section 14, an employer may operate an incentive scheme whereby the remuneration of the employee in excess of the minimum wage and overtime, if any, may be determined by quantity of output or measurement of work performed.

*Special provisions: learners*

16. (1) An employer may employ a learner in any position.

(2) An employer shall not employ a learner for more than—

(a) twelve weeks in the case of occupations listed in grades A2 to B1;

(b) in the case of all other grades, twenty-four months.

(3) A learner shall be paid—

(a) not less than his/her current wage; or



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(b) the minimum wage for grade A1; or

(c) half the minimum wage for the grade of the occupation in which he/she is a learner;

whichever is the greater.

(4) No employee shall be a learner in the same occupation more than once.

(5) A learner who, on or before the expiry of the period referred to in paragraph (a) or (b) of subsection (3), as the case may be, fails to reach the minimum level of competency or to maintain the rate of progress required by an employer in the occupation which he/she is learning may have his/her learnership terminated, and shall then return to his/her former grade and wage or, in the case of a learner recruited from outside the service of an employer, may have his/her services terminated.

*Subsistence allowances*

17. (1) An employee who is required to work so far from his/her usual place of work as to necessitate his/her sleeping away from home shall be conveyed to and from such place at the employer's expense, and shall be paid, in addition to his/her wages for the time during which he/she is away from home—

(a) all necessary proved accommodation, travelling and subsistence expenses; or

(b) in the case of unproved expenses, not less than—

(i) half of the current rate of the nearest two star hotel per night in respect of night accommodation; and

(ii) 2 *per centum* of the current A1 minimum per meal.

*Vacation leave*

18. (1) Vacation leave shall accrue to an employee at the rate of twenty-two (22) working days for employees working a five-day week and twenty-six (26) working days for employees working a six-day week or 30 calendar days *per annum* where weekends and public holidays are included:



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Provided that for purposes of calculating leave, Saturdays, Sundays and Public Holidays shall not be included.

(2) In determining the amount of vacation leave which has accrued to an employee on termination of service, any portion of a month shall be paid on *pro rata* basis.

(3) Except with the consent of the employer, no employee shall be entitled to take vacation leave during his/her first year of continuous service.

(4) An employee shall be entitled to proceed on vacation leave of fourteen days or more within six weeks of his/her application thereof:

Provided that—

(a) where undue hardship would be caused to the employer, the employee shall be entitled to proceed on leave within nine weeks of his/her application thereof;

(b) where an establishment has an annual shut-down, employees may be required to take their vacation leave during this annual shut-down.

(5) An employee proceeding on vacation leave shall, unless he.she otherwise elects, receive his/her current wage for the period of such leave prior to his/her going on leave.

(6) An employee who has accumulated vacation leave may, with the consent of the employer, elect to be paid cash-in-lieu of any vacation leave or portion of any vacation leave, in addition to his/her normal wage, in place of proceeding on such leave:

Provided that the employee shall also proceed on leave for a period at least equal to the period taken in lieu.

(7) Every employee whose employment is terminated by him/herself or by the employer for any reason whatsoever, shall be entitled to be paid the cash equivalent of any accrued leave.

(8) An employee may, with the consent of the employer, accumulate paid vacation leave of up to ninety (90) calendar days or 66 working days for five-day workers or 78 for six-day workers.



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(9) Where an employee has no vacation leave accrued, he/she may be granted vacation leave without pay.

*Special leave*

19. Special leave on full pay not exceeding twelve (12) days in a calendar year shall be granted by an employer to an employee—

(a) who is required to be absent from duty on the instructions of a medical practitioner because of contact with an infectious disease;

(b) who is subpoenaed to attend any court in Zimbabwe as a witness;

(c) who is required to attend as a delegate or office-bearer at any meeting of a registered trade union representing employees within the undertaking or industry in which the employee is employed.(refer to full council;

(d) who is detained for questioning by the police;

(e) on the death of the following, but not limited to a spouse, parent, child, sibling, in-laws or legal dependant;

(f) who is a male employee who wishes to proceed on paternity leave of not more than seven (7) days. The paternity leave may be taken a week before birth or up to three weeks after birth of a child with a registered spouse. The spouse should have been registered with the organisation for the past six (6) months;

(g) on any justifiable compassionate ground within one's family responsibilities.

*Industrial holidays*

20. (1) All days declared in terms of the Public Holidays and Prohibition of Business Act [*Chapter 10:21*] as public holidays shall be industrial holidays.

(2) Subject to the provisions of subsection (3), every employee shall be granted leave of absence on industrial holidays and shall be paid the current daily wage for every industrial holiday.



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(3) An employer may request an employee to work on any industrial holiday, in which case he/she shall be paid in terms of section 9 in respect of time worked, in addition to the payment prescribed in subsection (2).

*Sick leave*

21. (1)Unless more favourable conditions have been provided for in any employment contract or in any enactment, sick leave shall be granted in terms of this section to an employee who is prevented from attending his/her duties because he/she is ill or injured or undergoes medical treatment which was not occasioned by his/her failure to take reasonable precautions.

(2) During any one-year period of service of an employee an employer shall, at the request of the employee supported by a certificate signed by a registered medical practitioner, grant up to ninety days' sick leave on full pay.

(3) If, during any one-year period of service of an employee, the employee has used up the maximum period of sick leave on full pay, an employer shall, at the request of the employee supported by a certificate signed by a registered medical practitioner, grant a further period of up to ninety days' sick leave.

on half pay where, in the opinion of the registered medical practitioner signing the certificate, it is probable that the employee will be able to resume duty after such further period of sick leave.

(4) If, during any one-year period of service, the period or aggregate periods of sick leave exceed—

(a) ninety days' sick leave on full pay; or

(b) subject to subsection (3), one hundred and eighty days' sick leave on full and half pay;

the employer may terminate the employment of the employee concerned.

(5) An employee who so wishes may be granted accrued vacation leave instead of sick leave on half pay or without pay.

(6) An employee who is granted sick leave by a registered medical practitioner shall inform their employer of the sick leave within 24 hours of being granted such sick leave.



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*Administration of sick leave*

22. (1) If any employee claims to be unfit for work owing to sickness, the employer shall grant the employee such time off as may enable such employee to be medically examined.

(2) Upon being medically examined, an employee shall obtain a medical certificate stating—

(a) whether or not he/she is fit for work; and

(b) if he/she is not fit for work, the period for which he/she is likely to be unfit for work;

and shall produce such certificate on his/her return to work the employee shall however notify the employer within 24 hours. (In terms section 14 of the Act as amended).

(3) An employee who so wishes may be granted accrued vacation leave instead of sick leave on half pay or without pay.

(4) A certificate issued by a State Registered Nurse or a suitably qualified person shall be accepted in place of a medical certificate when no medical practitioner is available.

(5) The provisions of subsection (3) shall apply to an employee—

(a) who is receiving the benefits prescribed in subsections (3) and (4) but who would be working short-time if he/she were not sick; or

(b) who qualifies to receive the benefits prescribed under subsection (3) whilst short-time is being worked.

(6) When an establishment returns to normal working hours, employees receiving sick-benefits reduced in terms of subsection (4) shall receive thereafter the full benefits prescribed in this section.

*Maternity leave*

23. (1) Unless more favourable conditions have otherwise been provided for in any employment contract or in any enactment, maternity leave shall be granted in terms of this section for a period of ninety-eight days on full pay to a female employee who has served for at least one year.



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(2) On production of a certificate signed by a registered medical practitioner or State registered nurse certifying that she is pregnant, a female employee may proceed on maternity leave not earlier than the forty-fifth day and not later than the twenty-first day prior to the expected date of delivery.

(3) A female employee shall be entitled to be granted a maximum of three periods of maternity leave with respect to her total service to any one employer during which she shall be paid her full salary:

Provided that paid maternity leave shall be granted only once during any period of twenty-four months calculated from the day any previous maternity leave was granted.

(4) Any maternity leave requested in excess of the limits prescribed in this section may be granted as unpaid maternity leave.

(5) Unless the employer grants sick leave for medical reasons other than maternity, sick leave may not be granted once paid maternity leave has begun or during a period of unpaid maternity leave.

(6) During the period when a female employee is on maternity leave in accordance with this section, her normal benefits and entitlements, including her rights to seniority or advancement and the accumulation of pension rights, shall continue uninterrupted in the manner in which they would have continued had she not gone on such leave, and her period of service shall not be considered as having been interrupted, reduced or broken by the exercise of her right to maternity leave in terms of this section.

(7) A female employee who is the mother of a suckling child shall, during each working day, be granted at her request at least one hour or two half-hour periods, as she may choose during normal working hours, for the purpose of nursing her child, and such employee may combine the portion or portions of time to which she is so entitled with any other normal breaks so as to constitute longer periods that she may find necessary or convenient for the purpose of nursing her child.

(8) Any person who contravenes this section shall be guilty of an unfair labour practice.



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(9)Notwithstanding subsections (7) and (8), the grant of breaks during normal working time to a female employee for the purpose of nursing her child shall be made in accordance with all the exigencies of her employment and nothing done to prevent any disruption of normal production processes or any interference with the efficient running of an undertaking or industry shall be held to be in contravention of subsection (7).

(10) A female employee shall be entitled to the benefits under subsection (6) for the period during which she actually nurses her child or six months, whichever is the lesser.

*Contract and notice*

24. (1) An employer shall inform every employee, in writing upon engagement, of the nature of his/her contract of employment, including—

(a) his/her grade; and

(b) his/her wage and when it will be paid; and

(c) provision for accommodation; and

(d) the period of notice required to terminate the contract of employment; and

(e) the hours of work; and

(f) the details of any bonus or incentive production scheme in operation; and

(g) provision for benefits during sickness; and

(h) provision for vacation leave.

(2) Notice of termination of the contract of employment to be given by either party in writing shall be—

(a) three months in the case of a contract without limit of time or a contract for a period exceeding two years;

(b) two months in the case of a contract for a period exceeding one year but less than two years;

(c) one month in the case of a contract for a period exceeding six months but less than one year;

(d) two weeks in the case of a contract for a period of six months or less in the case of casual work or seasonal work;



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(e) one day in the case of a contract for a period of less than three months or in the case of casual work or seasonal work:

Provided that –the parties to any contract of employment may, by mutual agreement, waive the right to notice.

(3) Subject to the provisions of subsection (5) of section 2 no employer shall give notice of termination of contract to an employee with more than one month of continuous service when the employee is on sick-leave.

(4) Except by mutual agreement, in writing, neither the employer nor the employee shall give notice of termination of contract when the employee is on vacation leave.

(5)An employee who has given or received notice to terminate employment shall not be required to take vacation leave during the period of such notice, except by mutual agreement, in writing.

(6) Subject to the provisions of section 18, an employee who has given or received notice to terminate his employment shall, upon termination of his/her employment, be paid such leave-pay as may have accrued to him/her at the date of termination.

(7)Any contract of employment, which is for a stipulated period, or for the performance of a specific task shall specify the date of commencement and the date of termination thereof, and no further notice to terminate the contract shall be required from either party.

*Continuous service*

25. (1) Continuous service shall be deemed to be broken only by the death, resignation, retirement or discharge of the employee concerned—

Provided that an employee who is discharged and re-engaged by the same employer within two months of such discharge shall be deemed not to have broken his continuous service.

(2) In calculating any benefits in terms of sections 4, 18, 20 and 25, there shall not be taken into considerations any period of absence—



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(a) without the permission of the employer; or

(b) between discharge and re-engagement; of less than two months.

(3) If, upon the change of ownership of an establishment, an employee enters the service of the new owner, or continues his/her employment in the establishment, his/her service with the previous broken by such change of employer.

(4) An employee who has completed two or more years of continuous service shall be entitled to be paid a service allowance in terms of the third schedule.

(5) The service allowance shall be calculated by increasing the employee's actual rate of pay with effect from the anniversary of his/her commencing employment by the appropriate *per centum* specified in the second column of the Third schedule according to the employee's length of service as referred to in the first column of that schedule.

Provided that, if an employee is paid by the previous owner a gratuity in terms of section 25 in respect of his/her service with that owner, gratuity payable by the new owner on death, resignation or discharge of such employee may be reduced by the amount of the gratuity paid by the previous owner.

*Record of service*

26. (1) Any employee whose services are terminated, for any cause whatsoever, has a right to a record of service from his/her employer.

(2) The record of service supplied by the employer to the employee shall specify the period of service and the occupation of the employee.

*Health and safety (refer to health and safety policy)*

27. (1) In this section, the following terms and expressions shall have the meanings stated herein—

Safe work – means a work environment free from Occupational hazards.



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OHS – means Occupational Health Safety.
PPE – means Personal Protective Equipment
Hand S – means Health and Safety

(2) The employer shall ensure that workplaces are safe as far as reasonably practicable and that they are without risk as far as reasonably practicable.

(3) The employer shall provide adequate PPE wherever an employee is habitually exposed to safety hazard or inclement weather as a last resort to hazard control.

(4) PPE so issued shall—

(a) remain the property of the employer if he/she is responsible for mending, washing and otherwise maintaining such clothing;

(b) become the property of the employee after three months continuous service if he/she is responsible for mending, washing and otherwise maintaining such clothing.

(5) The employer shall provide facilities for emergencies and accidents including first aid.

(6) All employees shall fulfill OHS obligations, while worker's representatives co-operate with the employer in OHS.

(7) The employer shall place priority in controlling hazards on the engineering controls at the source of the hazard. Where this is not possible, administration controls will be used.

(8) Where deemed necessary, Technical Advisers may be brought in to assist in OHS by mutual agreement.

(9) No employer shall dismiss an employee, reduce pay or alter their conditions of employment because they believe that the employee has given information to the state, complied with a lawful prohibition or acted in terms of H and S law.

(10) Where there are reasonable grounds for believing that his/her life is in danger, the employee shall inform his/her Supervisor and, if necessary the Health and Safety Committee which shall promptly make appropriate recommendations to the employer.



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(11) Every employee shall have the right to remove himself/herself from work where there is reasonable cause to believe that his/her life is endangered until adequate measures are taken to protect their health and safety.

(12) Every workplace shall have a Health and Safety representative and/or a safety Committee to inspect and monitor work environments and make appropriate recommendations to—

(a) periodically review the work environment;

(b) identify major problems;

(c) to evolve and prioritize effective actions and evaluate them;

(d) to make necessary recommendations in terms of this section.

(13) All the activities of a Health and Safety representative shall be done in ordinary working hours during paid time.

(14) All workers shall be entitled to paid educational leave for all Health and safety Training and shall carry out Hand S activities during paid time.

(15) The employer shall provide at his/her expense, regular Occupational Health Services checks. Such checks shall not include any form of testing for HIV/AIDS or sexually transmitted diseases.

(16) Occupational Health Services checks shall be related to work exposures and shall be carried out—

(a) on engagement;

(b) on job transfer;

(c) regularly and often as required;

(d) before termination of employment e.g. retrenchment, retirement or termination for other causes.

(17) No employer shall conduct pre-employment HIV tests on a prospective employee.

(18) An employee who is injured in the course of his employment and who is unable to continue in his/her previous job shall receive all necessary job re-training at company expense. His/her rehabilitation shall include—



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(a) job security and job transfer where the employee is unable to perform his/her prior jobs;

(b) re-training for the new job placement;

(c) where the worker cannot be placed in a job, early retirement on medical grounds in terms of an appropriate pension scheme.

*Gratuities on termination of employment*

28. (1) An employee who has completed ten or more years of continuous service shall, on the termination of such employment, irrespective of the circumstances of such termination, be paid a gratuity of not less than the amount derived by multiplying the number of completed years of continuous service by appropriate percentage, as set out in the Second Schedule, of his/her current monthly wage on termination.

(2) If an employee, who has completed ten or more years of continuous service, dies before receiving a gratuity in terms of subsection (1), there shall be paid to his estate the sum which the employee would have received if his/her contract of employment had terminated on the day of his/her death.

(3) Notwithstanding the provisions of subsections (1) and (2), no gratuity shall be payable under this section if the employer has made provisions for employees by a pension or gratuity scheme, registered as a fund in terms of the Pension and Provident Funds Act [*Chapter 24:09*], which provides for benefits which are not less favourable than those prescribed in this section.

*Copy of agreement and notice*

29. (1) Every employer shall exhibit a copy of this agreement and all amendments thereto in a place easily accessible to every employee.

(2) Every employer shall exhibit a notice, in the form set out, showing the number of ordinary working hours per week and the normal daily times of starting and times of finishing work in his/her establishment for each class or group of employees, and the industrial holidays to be observed.



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(3) No person shall, without lawful cause, alter, deface or remove, or cause to be altered, defaced or removed, the copy of this notice, save on the instruction of the employer when carrying out his/her responsibilities under subsections (1) and (2).

*Declaration*

The Cement and Lime and Allied Employers' Association of Zimbabwe representing all employers in the Cement and Lime and Allied Sectors, and the Cement and Allied and Lime "Workers Union" of Zimbabwe representing all the employees in the Industry, having arrived at the agreement set forth herein, the undersigned hereby declare that the foregoing is the agreement arrived at, and effective from the date of agreement by the parties, affix their signatures hereto:

Signed at Kwekwe on this 25th day of September, 2019

D. N. SIBANDA,
Chairman,
National Employment Council
for the Cement and Lime and Allied Industry.

M. SIBANDA,
General secretary,
Cement and Lime and Allied Industry Workers Union.

V. HUNGWE,
Cement and Lime and Allied Employers Association
Representative.



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FIRST SCHEDULE (*Section 2, 3, and 4*)

CLASSIFICATION OF OCCUPATION IN GRADES

**PATERSON GRADE A1**

| **OLD JOB TITLES** | **NEW JOB TITLES** | **OLD GRADE** | **NEW GRADE** |
|---|---|---|---|
| 1. General Worker | General Worker | A1/A2 | A1 |
| 2. Groundsman/Gardener | Groundsman/Gardner | A1 | A1 |
| 3. Wash bay Attendant | Washbay Attendant | A1 | A1 |

**PATERSON GRADE A2**

| OLD JOB TITLES | NEW JOB TITLES | OLD GRADE | NEW GRADE |
|---|---|---|---|
| 4. Cement Mill Attendant | Cement Mill Attendant | A2 | A2 |
| 5. Coal Mill Attendant | Coal Mill Attendant | A2 | A2 |
| 6. Cook | Cook | A1/A2 | A2 |
| 7. Crusher Attendant | Crusher Attendant | A2 | A2 |
| 8. Feed Attendant | Feed Attendant | A2 | A2 |
| 9. Messenger/Cleaner | Messenger/Cleaner | A2 | A2 |
| 10. Plant Attendant | Plant Attendant | B5 | A2 |
| 11. Pool Attendant | Pool Attendant | A2 | A2 |
| 12. Shuttle Conveyor Operator | Shuttle Conveyor Operator | A2 | A2 |
| 13. Silo Attendant | Silo Attendant | A2 | A2 |
| 15. Truck Levelers | Truck Levelers | A2 | A2 |
| 16. Truck Loader/Packer | Loader | A2 | A2 |

**PATERSON GRADE A3**

| **OLD JOB TITLES** | **NEW JOB TITLES** | **OLD GRADE** | **NEW GRADE** |
|---|---|---|---|
| 17. Assistant Excavator Operator | Assistant Excavator Operator | A3 | A3 |
| 18. Assistant Dryer Operator | Assistant Dryer Operator | A3 | A3 |
| 19. Assistant to Bulk Driver | Assistant to Bulk Driver | A3 | A3 |
| 20. Bag Checker | Bag Checker | A3 | A3 |
| 21. Belt Attendant/ Operator | Belt Attendant | A2 | A3 |
| 22. Bulk loader Operator | Bulk Loader Operator | A3 | A3 |
| 23. Bus Conductor | Bus Conductor | A3 | A3 |
| 24. Compressor Attendant | Compressor Attendant | A3 | A3 |



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| OLD JOB TITLES | NEW JOB TITLES | OLD GRADE | NEW GRADE |
|---|---|---|---|
| 25. Driller's Assistant | Driller's Assistant | B3 | A3 |
| 27. Feed Operator | Feed Operator | A3 | A3 |
| 28. Greaser/Plant Lubricants | Greaser | A3 | A3 |
| 29. Kettle Operator Assistant | Kettle Operator Assistant | A2 | A3 |
| 30. Shift/Nurse Aid | Nurse Aid | A3/B5 | A3 |
| 31. Operator Support | Operator Support Production | A3 | A3 |
| 32. Security Guard | Security Guard | A3 | A3 |
| 33. Sewerage Attendant | Sewerage Operator | A3 | A3 |
| 34. Shunter | Shunter | A3 | A3 |
| 35. Survey Assistant | Survey Assistant | A3 | A3 |
| 36. Tool Room Attendant | Tool Room Attendant | A2/A3 | A3 |
| 37. Vermiculite Plant Operator Assistant | Vermiculite Plant Operator Assistant | A2 | A3 |
| 38. Weighbridge Operator | Weighbridge Operator | A3 | A3 |
| 39. Winch Operator | Winch Operator | A3 | A3 |
| 40. Workshop Assistant | Workshop Assistant | A3 | A3 |

**PATERSON GRADE B1**

| OLD JOB TITLES | NEW JOB TITLES | OLD GRADE | NEW GRADE |
|---|---|---|---|
| 42. Barman | Barman | B1 | B1 |
| 43. Class 4 Artisan<br>- Builder Class 4<br>- Bricklayer Class 4<br>- Carpenter Class 4<br>- Painter Class 4<br>- Plumber Class 4<br>- Rigger Class 4<br>- Coded Welder Class 4 | <br>- Builder Class 4<br>- Bricklayer Class 4<br>- Carpenter Class 4<br>- Painter Class 4<br>- Plumber Class 4<br>- Rigger Class 4<br>- Coded Welder Class 4 | | B1<br>B1<br>B1<br>B1<br>B1<br>B1<br>B1<br>B1 |
| 44. Corporal | Corporal | A2/B4 | B1 |
| 45. Driver (Tractor Honey Sucker) | Driver (Tractor Honey Sucker) | A2 | B1 |
| 46. Handyman's Assistant | Handyman's Assistant | B1 | B1 |
| 47. Sampler | Sampler | A2/B1/ B2/B3 | B1 |
| 48. Senior/Head Messenger | Senior Messenger | A2/B1 | B1 |
| 49. Stoker | Stoker | B1 | B1 |
| 50. Tractor Driver | Tractor Driver | B1 | B1 |



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| OLD JOB TITLES | NEW JOB TITLES | OLD GRADE | NEW GRADE |
|---|---|---|---|
| 51. Vehicle Inspector | Vehicle Inspector | B1 | B1 |
| 52. Water Pump Attendant | Water Pump Attendant | A2/B3 | B1 |
| 53. Weighbridge Clerk | Weighbridge Clerk | B1 | B1 |

## PATERSON GRADE B2

| OLD JOB TITLES | NEW JOB TITLES | OLD GRADE | NEW GRADE |
|---|---|---|---|
| 54. Assistant Burner | Assistant Burner | B2 | B2 |
| 55. Assistant Mixing and Bagging Operator | Assistant Mixing and Bagging Operator | B2 | B2 |
| 56. Blaster (Restricted Licence) | Blaster (Restricted Licence) | B2 | B2 |
| 57. Class 3 Artisan<br>- Bricklayer Class 3<br>- Painter Class 3 | <br>Bricklayer Class 3<br>Painter Class 3 | | <br>B2<br>B2 |
| 58. Class 4 Artisan<br>- Auto Electrician Class 4<br>- Boilermaker Class 4<br>- Diesel Mechanic Class 4<br>- Diesel Plant Fitter Class 4<br>- Draughtsman Class 4<br>- Fitter and Tuner Class 4<br>- Motor Mechanic Class 4 | <br>Auto Electrician Class 4<br>Boilermaker Class 4<br>Diesel Mechanic Class 4<br>Diesel Plant Fitter Class 4<br>Draughtsman Class 4<br>Fitter and Turner Class 4<br>Motor Mechanic Class 4 | | <br>B2<br>B2<br>B2<br>B2<br>B2<br>B2<br>B2 |
| 59. Chef | Chef | | B2 |
| 60. Clerical Assistant | Clerical Assistant | B1 | B2 |
| 61. Clinker Silo Operator | Clinker Silo Operator | B2 | B2 |
| 62. Coal and Slug Attendant | Coal and Slug Attendant | | B2 |
| 63. Driver Class 4/ Light Vehicle | Driver Class 4/ Light Vehicle | B2 | B2 |
| 64. Jack Hammer Operator/ Hand Driller | Jack Hammer Operator | A2/A3/ B4 | B2 |
| 65. Dryer Operator | Slag Dryer Operator | B2 | B2 |
| 66. Packer Operator | Packer Operator | A3/B1/ B2 | B2 |
| 67. Pump House Operator | Pump House Operator | B2 | B2 |
| 68. Reclaimer Operator | Reclaimer Operator | B2 | B2 |
| 69. Senior Leading Hand | Senior Leading Hand | B2 | B2 |
| 70. Stacker Operator | Stacker Operator | A3 | B2 |
| 71. Forklift Driver/Operator | Forklift Driver/Operator | B2/B3 | B2 |



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| OLD JOB TITLES | NEW JOB TITLES | OLD GRADE | NEW GRADE |
|---|---|---|---|
| 72. Crushing Plant Operator Support | Crushing Plant Operator Support | B2 | B2 |
| 73. Operator Support Mining | Operator Support Mining | B2 | B2 |
| 74. Wagon Tippler Operator | Wagon Tippler Operator | B2 | B2 |

**PATERSON GRADE B3**

| | | | |
|---|---|---|---|
| 75. 16/50 Symon P/Operator | 16/50 Symon P/Operator | B3 | B3 |
| 76. Accounts Clerk | Accounts Clerk | C1 | B3 |
| 77. Assistant Salesman | Assistant Salesman | B3 | B3 |
| 78. Beltsman/Splicer | Beltsman | B3/C1 | B3 |
| 79. Bus Driver | Bus Driver | B3 | B3 |
| 80. Accounting Assistant | Cashbook Clerk | B3 | B3 |
| 81. Class 3 Artisan<br>- Builder Class 3<br>- Carpenter Class 3<br>- Coded Welder Class 3<br>- Plumber Class 3<br>- Rigger Class 3 | <br>Builder Class 3<br>Carpenter Class 3<br>Coded Welder Class 3<br>Plumber Class 3<br>Rigger Class 3 | | <br>B3<br>B3<br>B3<br>B3<br>B3 |
| 82. Cement Gauger | Cement Gauger | B3 | B3 |
| 83. Routine Chemical Tester | Chemical Tester | B3 | B3 |
| 84. Cooler Inspector | Cooler Inspector | B3 | B3 |
| 85. Costing Clerk | Costing Clerk | B3 | B3 |
| 86. Accounting Assistant - Creditors | Creditors Clerk | B3/B4 | B3 |
| 87. Data Capture Clerk | Data Capture Clerk | B3 | B3 |
| 88. Accounting Assistant - Debtors | Debtors Clerk | B3 | B3 |
| 89. Drill Rig Operator | Drill Rig Operator | A3/ B3 | B3 |
| 90. Export Sales Clerk | Export Sales Clerk | B3 | B3 |
| 91. Filing Clerk | Filing Clerk | B3 | B3 |
| 92. Front End Loader Operator | Front End Loader Operator | B3 | B3 |
| 93. Garage Clerk | Garage Clerk | B3 | B3 |
| 94. Heavy Vehicle Driver | Heavy Vehicle Driver/Class 2 | B3 | B3 |
| 95. Human Resources Clerk | Human Resources Records Clerk | B3 | B3 |
| 96. Issuing Clerk/Fuel Attendant | Issuing Clerk | B3 | B3 |
| 97. Logistics Clerk | Logistics Clerk | B3 | B3 |
| 98. Lubrication Supervisor | Lubrication Supervisor | B3 | B3 |
| 99. Magazine Issuing Clerk | Magazine Issuing Clerk | B3 | B3 |
| 100. Messenger/Driver | Messenger/Driver | B3 | B3 |
| 101. Operator Support Mobile | Operator Support Mobile | B3 | B3 |
| 102. Overhead Crane Driver | Overhead Crane Driver | B2/B3 | B3 |



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| | | | |
|---|---|---|---|
| 103. Packing Gang Leader | Packing Gang Leader | B3 | B3 |
| 104. Packing Plant Clerk | Packing Plant Clerk | B2 | B3 |
| 105. Routine Physical Tester | Physical Tester | B3 | B3 |
| 106. Planning Clerk | Planning Clerk | B3 | B3 |
| 107. Pre-Heater attendant | Pre-Heater attendant | B3 | B3 |
| 108. Product Manufacturer | Product Manufacturer | B3 | B3 |
| 109. Production Clerk | Production Clerk | B3 | B3 |
| 110. Purchasing Clerk | Purchasing Clerk | B3 | B3 |
| 111. Quality Assurance Clerk | Quality Assurance Clerk | B3 | B3 |
| 112. Quarry Records Clerk | Quarry Records Clerk | B3 | B3 |
| 113. Receiving Clerk | Receiving Clerk | B3 | B3 |
| 114. Receptionist | Receptionist | B3 | B3 |
| 115. Records Clerk - Plant | Records Clerk | B3 | B3 |
| 116. Sales Clerk | Sales Clerk | B3 | B3 |
| 117. Sergeant | Sergeant | B3 | B3 |
| 118. Trolley fitter | Trolley fitter | B3 | B3 |
| 119. Tyre fitter | Tyre fitter | B3 | B3 |
| 120. Wages Clerk | Wages Clerk | B3 | B3 |
| 121. Warehouse Clerk | Warehouse Clerk | B3 | B3 |
| 122. Water Bowser Driver | Water Bowser Driver | B3 | B3 |
| 123. Workshop Stores Clerk | Workshop Stores Clerk | B3 | B3 |

**PATERSON GRADE B4**

| OLD JOB TITLES | NEW JOB TITLES | OLD GRADE | NEW GRADE |
|---|---|---|---|
| 124. Assistant Miller | Assistant Miller | B4 | B4 |
| 125. Bulldozer Driver/Operator | Bulldozer Driver/Operator | B4 | B4 |
| 126. Cashier | Cashier | B4 | B4 |
| 127. Class 2 Artisan<br>- Bricklayer Class 2<br>- Painter Class 2 | <br>Bricklayer Class 2<br>Painter Class 2 | | <br>B4<br>B4 |
| 128. Class 3 Artisan<br>- Auto Electrician Class 3<br>- Boilermaker Class 3<br>- Diesel Mechanic Class 3<br>- Diesel Plant Fitter Class 3<br>- Draughtsman Class 3<br>- Fitter and Tuner Class 3<br>- Motor Mechanic Class 3 | Class 3 Artisan<br>Auto Electrician Class 3<br>Boilermaker Class 3<br>Diesel Mechanic Class 3<br>Diesel Plant Fitter Class 3<br>Draughtsman Class 3<br>Fitter and Tuner Class 3<br>Motor Mechanic Class 3 | | B4<br>B4<br>B4<br>B4<br>B4<br>B4<br>B4<br>B4 |
| 129. Club Supervisor | Club Supervisor | B4 | B4 |
| 130. Compressor Operator | Compressor Operator | B4 | B4 |



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|---|---|---|---|
| 131. Driver Mobile Crane Operator | Driver Mobile Crane Operator | B4 | B4 |
| 132. Dump Truck Driver | Dump Truck Driver | B2/B3 | B4 |
| 133. Excavator Operator | Excavator Operator | B4 | B4 |
| 134. Grader Driver/Operator | Grader Driver/Operator | B4 | B4 |
| 135. Kettle Operator | Kettle Operator | B4 | B4 |
| 136. Laboratory Technician/ Assistant | Laboratory Assistant | B4 | B4 |
| 137. Landscape Supervisor | Landscape Supervisor | B4 | B4 |
| 138. Mixing And Bagging Operator | Mixing And Bagging Operator | B4 | B4 |
| 140. Milling Plant Operator/Ball Mill Operator | Gypsum Milling Plant Operator | B4 | B4 |
| 141. Personnel Clerk | Human Resources Clerk | B3 | B4 |
| 142. Operator Support Multiskills | Operator Support (Kiln) Multiskills | B4 | B4 |
| 143. Sales and Dispatch Clerk | Sales and Dispatch Clerk | B4 | B4 |
| 144. Senior Gauger | Senior Gauger | B4 | B4 |
| 145. Silo Operator | Silo Operator | B4 | B4 |
| 146. Steam Loco Driver | Loco Driver | B5 | B4 |
| 147. Stock Controller | Stock Controller | B4 | B4 |
| 148. Vermiculite Plant Operator | Vermiculite Plant Operator | B4 | B4 |

**PATERSON GRADE B5**

| OLD JOB TILTES | NEW JOB TITLES | OLD GRADE | NEW GRADE |
|---|---|---|---|
| 149. Assistant Credit Controller | Assistant Credit Controller | B5 | B5 |
| 150. Caterer | Caterer | B5 | B5 |
| 151. Class 2 Artisan<br>- Builder Class 2<br>- Carpenter Class 2<br>- Coded Welder Class 2<br>- Plumber Class 2<br>- Rigger Class 2 | Builder Class 2<br>Carpenter Class 2<br>Coded Welder Class 2<br>Plumber Class 2<br>Rigger Class 2 | | <br>B5<br>B5<br>B5<br>B5<br>B5 |
| 152. Dispatch Coordinator | Dispatch Coordinator | B5 | B5 |
| 153. Burner | Burner (Gypsum) | B5 | B5 |
| 154. Handyman | Handyman | B5 | B5 |
| 155. Kiln Leading Hand | Kiln Leading Hand | B5 | B5 |
| 156. Issuing Supervisor/ Receiving Supervisor | Materials Supervisor | B5 | B5 |
| 157. Plant Leading Hand | Plant Leading Hand | B5 | B5 |
| 158. Transport Overseer | Transport Overseer | B5 | B5 |



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**PATERSON GRADE C1**

| OLD JOB TITLES | NEW JOB TITLES | OLD GRADE | NEW GRADE |
|---|---|---|---|
| 159. Ambulance Technician | Ambulance Technician | C1 | C1 |
| 160. Bookkeeper | Bookkeeper | C1 | C1 |
| 161. Class 1 Artisan<br>- Bricklayer Class 1<br>- Painter Class 1 | <br>Bricklayer Class 1<br>Painter Class 1 | | C1<br>C1<br>C1 |
| 162. Class 2 Artisan<br>- Auto Electrician Class 2<br>- Boilermaker Class 2<br>- Diesel Mechanic Class 2<br>- Diesel Plant Fitter Class 2<br>- Draughtsman Class 2<br>- Fitter and Tuner Class 2<br>- Motor Mechanic Class 2 | Class 2 Artisan<br>Auto Electrician Class 2<br>Boilermaker Class 2<br>Diesel Mechanic Class 2<br>Diesel Plant Fitter Class 2<br>Draughtsman Class 2<br>Fitter and Tuner Class 2<br>Motor Mechanic Class 2 | | C1<br>C1<br>C1<br>C1<br>C1<br>C1<br>C1<br>C1 |
| 163. Crushing Plant Operator | Crushing Plant Supervisor | C1 | C1 |
| 164. Drill Rig Supervisor | Drill Rig Supervisor | C1 | C1 |
| 165. Drilling and Blasting Supervisor | Drilling and Blasting Supervisor/Blaster | C1 | C1 |
| 166. Field Patroller | Field Patroller | C1 | C1 |
| 167. Plant Supervisor | Plant Supervisor | C1 | C1 |
| 168. Quarry Lab Analyst | Quarry Lab Analyst | C1 | C1 |
| 169. Sales Secretary | Sales Secretary | C1 | C1 |
| 170. Secretary / Receptionist | Secretary / Receptionist | C1 | C1 |
| 171. Human Resources Secretary | Human Resources Secretary | B5 | C1 |
| 172. Secretary | Secretary | C2 | C1 |

**PATERSON GRADE C2**

| OLD JOB TITLES | NEW JOB TITLES | OLD GRADE | NEW GRADE |
|---|---|---|---|
| 173. Achiever Administrator | Achiever Administrator | C3 | C2 |
| 174. Assistant Accountant | Assistant Accountant | C2 | C2 |
| 175. Belt Splicer + Rubber Liner | Belt Splicer + Rubber Liner | C2 | C2 |
| 176. Class 1 Artisan<br>- Builder Class 1<br>- Carpenter Class 1<br>- Plumber Class 1<br>- Rigger Class 1<br>- Coded Welder Class 1 | <br>Builder Class 1<br>Carpenter Class 1<br>Plumber Class 1<br>Rigger Class 1<br>Coded Welder | | <br>C2<br>C2<br>C2<br>C2<br>C2 |
| 177. Counselor | Counselor | C2 | C2 |



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| OLD JOB TITLES | NEW JOB TITLES | OLD GRADE | NEW GRADE |
|---|---|---|---|
| 178. Crushing Plant Operator | Plant Operator - Crushing | C2 | C2 |
| 179. Magazine Master | Magazine Master | C2 | C2 |
| 180. Packing Plant Supervisor | Packing Plant Supervisor | C2 | C2 |
| 181. Quarry Supervisor | Quarry Supervisor | C2 | C2 |
| 182. Sales Representative | Sales Representative | C2 | C2 |
| 183. Stores Supervisor | Stores Supervisor | C2 | C2 |
| 184. Senior Bookkeeper | Senior Bookkeeper | C2 | C2 |
| 185. SHE Assistant | SHE Assistant | C2 | C2 |
| 186. Special Product Supervisor | Special Product Supervisor | C2 | C2 |
| 187. Warehouse Superintendent | Warehouse Supervisor | C2 | C2 |

**PATERSON GRADE C3**

| OLD JOB TITLES | NEW JOB TITLES | OLD GRADE | NEW GRADE |
|---|---|---|---|
| 188. Assistant Loss Control Officer | Assistant Loss Control Officer | C3 | C3 |
| 189. Central Control Room Operator - Milling | Central Control Room Operator - Milling | C3 | C3 |
| 190. Class 1 Artisan<br>- Boilermaker Class 1<br>- Auto Electrician Class 1<br>- Diesel Mechanic Class 1<br>- Diesel Plant Fitter Class 1<br>- Fitter and Turner Class 1<br>- Motor Mechanic Class 1<br>- Draughtsman Class 1<br>- Electrician Class 1 | - Boilermaker Class 1<br>- Auto Electrician Class 1<br>- Diesel Mechanic Class 1<br>- Diesel Plant Fitter Class 1<br>- Fitter and Turner Class 1<br>- Motor Mechanic Class 1<br>- Draughtsman Class 1<br>- Electrician Class 1 | <br>C3<br>C3<br>C3<br>C3<br>C3<br>C3<br>C3<br>C3<br>C3 | <br>C3<br>C3<br>C3<br>C3<br>C3<br>C3<br>C3<br>C3<br>C3 |
| 191. Credit Controller | Credit Controller | C3 | C3 |
| 192. IT Network Administrator | IT Network Administrator | C3 | C3 |
| 193. Junior School Teacher | Junior School Teacher | C3 | C3 |
| 194. Laboratory Technician/ Analyst | Laboratory Technician/ Analyst | C3 | C3 |
| 195. LANA-Local Area Network Administrator | LANA-Local Area Network Administrator | C3 | C3 |
| 196. Overseer Miner | Overseer Miner | C3 | C3 |
| 197. Personal Assistant/Private Secretary | Personal Assistant/Private Secretary | C3 | C3 |
| 198. Process Operator Milling | Process Operator Milling | C3 | C3 |
| 199. Procurement Clerk | Buyer | C3 | C3 |
| 200. Refrigeration Technician | Refrigeration Technician | C3 | C3 |
| 201. State Registered Nurse | State Registered Nurse | C3 | C3 |
| 202. Systems Administrator | Systems Administrator | C3 | C3 |
| 203. Dispatch Process Operator | Dispatch Process Operator | C3 | C3 |



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**PATERSON GRADE C4**

| OLD JOB TITLES | NEW JOB TITLES | OLD GRADE | NEW GRADE |
|---|---|---|---|
| 204. Accounting Officer | Accounting Officer | C4 | C4 |
| 205. Analyst Programmer | Analyst Programmer | C4 | C4 |
| 206. Central Control Room Operator - Kiln | Central Control Room Operator - Kiln | C4 | C4 |
| 207. Diesel Plant Charge Hand | Diesel Plant Charge Hand | C4 | C4 |
| 208. Electrical Charge-hand | Electrical Charge-hand | C4 | C4 |
| 209. Electrical Technician | Electrical Technician | C4 | C4 |
| 210. Health Officer | Health Officer | C4 | C4 |
| 211. HR and Administration Assistant | HR and Administration Assistant | C4 | C4 |
| 212. Instrument Technician | Instrument Technician | C4 | C4 |
| 213. IT Technician | IT Technician | C4 | C4 |
| 214. Mechanical Charge Hand | Mechanical Charge Hand | C4 | C4 |
| 215. Process Operator - Kiln | Process Operator - Kiln | C4 | C4 |
| 216. Procurement Officer | Senior Buyer | C4 | C4 |
| 217. Quality Assurance Chemist | Quality Assurance Chemist | C4 | C4 |
| 218. Salaries Administrator | Salaries Administrator | C4 | C4 |
| 219. Sales Co-ordinator | Sales Co-ordinator | C4 | C4 |
| 220. Sister in Charge | Sister in Charge | C4 | C4 |
| 221. Surveyor | Surveyor | C4 | C4 |
| 222. Systems Analyst | Systems Analyst | C4 | C4 |
| 223. Workshop Charge Hand | Workshop Charge Hand | C4 | C4 |

SECOND SCHEDULE (*Section 29*)

**GRATUITIES**

| Length of Service<br>Years | Percentage of monthly wage On termination of employment |
|---|---|
| 10 | 15 |
| 11 | 16 |
| 12 | 17 |
| 13 | 18 |
| 14 | 19 |
| 15 | 20 |
| 16 | 21 |
| 17 | 22 |



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| | |
|---|---|
| 18 | 23 |
| 19 | 24 |
| 20 | 25 |
| 21 | 26 |
| 22 | 27 |
| 23 | 28 |
| 24 | 29 |
| 25 | 30 |
| 26 | 31 |
| 27 | 32 |
| 28 | 33 |
| 29 | 34 |
| 30 | 35 |
| 31 | 36 |
| 32 | 37 |
| 33 | 38 |
| 34 | 39 |
| 35 | 40 |

THIRD SCHEDULE (*Section 26*)

| LENGTH OF SERVICE (YEARS) | PERCENTAGE OF MONTHLY WAGE |
|---|---|
| 0 – 2 | 0 |
| 3 – 5 | 1 |
| 6 – 8 | 2 |
| 9 – 11 | 3 |
| 12 – 14 | 4 |
| 15 – 17 | 6 |
| 18 – 20 | 8 |
| 21 – 23 | 10 |
| 24 – 26 | 12 |
| 27 – 29 | 14 |
| 30 – 32 | 16 |
| 33 – 35 | 18 |
| 36 – 38 | 20 |
| 39 and above | 22 |

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